



CHAPTER xxxii.

An Act to confirm a Provisional Order of the Minister of Health relating to the borough of Stockton-on-Tees.

[30th July 1948.]

WHEREAS under the provisions of the Public Health Act 38 & 39 Vict. 1875 the Minister of Health has made a Provisional Order c. 55. which needs confirmation by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which is set out in the Order in schedule to this Act is hereby confirmed and shall have full schedule confirmed. validity and force.

2. This Act may be cited as the Ministry of Health Provisional Short title. Order Confirmation (Stockton-on-Tees) Act 1948.

SCHEDULE.

BOROUGH OF STOCKTON-ON-TEES.

Provisional Order altering a local Act and a Provisional Order.

WHEREAS the mayor aldermen and burgesses of the borough of Stockton-on-Tees acting by the council (hereinafter referred to as "the Corporation") are the local authority for the said borough (hereinafter referred to as "the borough") for the purposes of the Public Health Act 1875:

12 & 13 Geo. 5.
c. xcvi.

And whereas under the provisions of the Stockton-on-Tees Order 1922 (hereinafter referred to as "the Order of 1922") which was confirmed by the Ministry of Health Provisional Orders Confirmation (No. 8) Act 1922 the Corporation are authorised to demand and take in respect of the markets market places and market houses within the borough certain stallages rents and tolls:

20 & 21 Geo. 5.
c. clxxii.

And whereas by section 48 of the Stockton-on-Tees Corporation (General Powers) Act 1930 (hereinafter referred to as "the Act of 1930") the Corporation are authorised to establish a fund to be called "the lands fund":

And whereas the Corporation have applied to the Minister of Health for the issue of a Provisional Order partially to repeal alter or amend the Order of 1922 and the Act of 1930 in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title and
commencement.

1. This Order may be cited as the Stockton-on-Tees Order 1948 and shall come into operation on the date of the Act of Parliament confirming it.

Alteration of
charges in
markets &c.

2.—(1) Section 1 of the Order of 1922 shall have effect as if in the schedule thereto—

(a) where the Corporation provide a stall the additional charge specified in the schedule to this Order were substituted for the charge in that behalf specified in the schedule to the Order of 1922;

(b) there were inserted the provision as to rents for stands in the Corn Exchange specified in the schedule to this Order.

(2) The Corporation may with the sanction of the Secretary of State from time to time alter or add to the tolls mentioned in the schedule to the Order of 1922 as amended by this Order and any such altered tolls shall as from the date on which they come into operation be substituted for the corresponding tolls payable under the said schedule.

3.—(1) The Corporation may establish a fund to be called "the Capital fund. capital fund" to which they may pay any sums derived from the sale of any property of the Corporation the balance of the general rate fund in hand on the thirty-first day of March in any year and such other sums from the general rate fund (including a sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) as the Corporation may by resolution direct (not being moneys directed by law to be applied to any other purpose):

Provided that—

(a) any sum directed by the Corporation to be paid to the capital fund from the general rate fund (exclusive of the sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) shall not exceed in any one year a greater sum than twice the product of a penny rate as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act 1925;

15 & 16 Geo. 5.
c. 90.

(b) payments into the capital fund shall cease to be made whenever the said fund amounts to the sum of forty thousand pounds.

(2) The Corporation may apply the money in the capital fund for the purpose of defraying any expenditure to which capital is properly applicable to an amount not exceeding in any one transaction the sum of six thousand pounds or such greater sum as may be allowed by the Minister of Health in any case and in the exercise of any statutory borrowing power possessed by them other than in connection with any of the undertakings of the Corporation as from time to time existing from which revenue is derived or in providing money for payments into sinking funds in respect of loans raised under any such borrowing power (but not in making the annual payment required to be made thereto).

(3) Pending the application of the capital fund to the purposes authorised in the foregoing subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(4) Any income arising from the investment or use of the moneys in the capital fund in the manner provided by the last foregoing subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund.

(5) Any sums derived from the sale of any corporate land of the Corporation as defined in section 305 of the Local Government Act 1933 shall not be applied otherwise than in the purchase or acquisition of other corporate land.

23 & 24 Geo. 5.
c. 51.

(6) All moneys derived from the sale of any property of the Corporation which are applied from the capital fund under the provisions of this section shall be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Corporation:

Provided that where the advance is in the exercise of a statutory borrowing power such period shall not exceed the period prescribed for the repayment of moneys borrowed under that power.

(7) In this section the expressions "statutory borrowing power" and "statutory securities" have the same meanings as in the Act of 1930.

(8) Section 48 (Lands fund) of the Act of 1930 is hereby repealed.

SCHEDULE.

SPACE STALLAGE AND STANDAGE IN THE OPEN MARKET.

	Per day.	
	s.	d.
Additional charge where the Corporation provide a stall—		
Per square foot	0	1½

CORN.

	£	s.	d.
Rents payable for every half-year—			
For each stand in the Corn Exchange	3	5	0

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